



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP, Planning and Development Director
Subject: PLN-21-00003 – Fee Schedule Alignment
Date: May 5, 2021

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/10/2021
- Public Services Committee 5/18/2021
- Second reading 5/24/2021
- Public Services Committee 6/8/2021
- Third and final reading 6/14/2021

Planning Commission Recommendation:

The Planning Commission heard this item at their May 3, 2021 meeting and **unanimously** to recommend the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE UNIFIED DEVELOPMENT CODE (UDC) TO ALIGN THE UDC FEE SCHEDULE WITH THE FEE ADOPTION PRACTICES OF THE CITY.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment that is the subject of this ordinance meets the criteria specified in Section 2.4.1.d of the UDC.

Section 2. That the intent of this text amendment is to align the UDC fee schedule with the fee adoption practices of the City.

Section 3. That on May 3, 2021 the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 4. That Section 1.3.7 is amended as follows; “~~No action shall be taken on any application required by these regulations unless all fees have been paid in full. A schedule of fees, charges and expenses shall be established by ordinance of the City Council after a public hearing, and may be amended periodically.~~ **Fees shall be required at the time of the filing of any development application and are payable to the City in accordance with the fee schedules adopted by the City Council to defray some or all of the cost of processing land development applications of this Code. The City Council may amend the fee schedule from time-to-time. The fee schedule shall be made available to the public on the City website.**”

Section 5. The aforementioned Section of the UDC is hereby amended as set out within this ordinance and sections currently existing within the UDC not set out within this ordinance remain unchanged.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)
ATTEST:

PATRICK COLLINS, MAYOR

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune Eagle



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PLANNING COMMISSION

MAY 3, 2021

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code of the City of Cheyenne, Wyoming, to align the UDC fee schedule with the fee adoption practices of the City.

CASE NUMBER: PLN-21-00003

PREPARED BY: Charles W. Bloom, AICP, Planning and Development Director

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code to align the Unified Development Code fee schedule with the fee adoption practices of the City, as outlined in this staff report and recommended by staff, noting the request meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of Plan Cheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

UDC 1.3.7 establishes a process for the establishment of fees associated with applications associated with the Planning and Development office. The present text of the Ordinance (UDC 1.3.7) reads as follows:

"No action shall be taken on any application required by these regulations unless all fees have been paid in full. A schedule of fees, charges and expenses shall be established by ordinance of the City Council after a public hearing, and may be amended periodically."

DISCUSSION:

City staff has been working together to establish a universal fee schedule and amending this section of the UDC will allow the Governing Body to establish a fee schedule as a resolution. The UDC requirement that the fee adoption be done by ordinance can be viewed as overly burdensome due to the amount of

time to approve an ordinance and the fiscal costs to publish the ordinance upon approval. Additionally, if adopted by ordinance, an amendment to the fee schedule would also require an amendment by ordinance. Fees were last adopted by Resolution 3451 in 1993.

PROPOSED AMENDMENT:

The proposed amendment is rather straightforward. The amendment would modify UDC Section 1.3.7 as follows; ~~“No action shall be taken on any application required by these regulations unless all fees have been paid in full. A schedule of fees, charges and expenses shall be established by ordinance of the City Council after a public hearing, and may be amended periodically. Fees shall be required at the time of the filing of any development application and are payable to the City in accordance with the fee schedules adopted by the City Council to defray some or all of the cost of processing land development applications of this Code. The City Council may amend the fee schedule from time-to-time. The fee schedule shall be made available to the public on the City website.”~~

(Staff notes the term “City Council” includes the “Governing Body” pursuant to UDC 1.2.4.)

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

“The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan.”

This proposed text amendment is consistent with the Foundation 7, and principles and policies within PlanCheyenne. Specifically, the proposed amendment addresses the following policies and principles:

Foundation 7 – Developing in a Fiscally Responsible Way

Synopsis: The Cheyenne Area excels in providing services in a fiscally responsible way... The Plan aims to guide future growth to promote efficient use of public and private resources and to provide adequate public facilities to sustain our quality of life and to encourage continued growth. This includes having reasonable fees to offset costs associated with development review.

Principle 7.2: Adequate Public Services

Synopsis: The Cheyenne Area will provide adequate public facilities and services for current and future residents in a fiscally responsible manner.

Policy 7.2.C: Maintain Level of Service

Synopsis: Coordinate with service providers and other governmental organizations that provide services to community residents to ensure that existing and new neighborhoods have adequate services, and that existing public facilities are properly maintained to serve the needs of current and future residents.

Principle 7.5: Funding of Quality of Life Services

Synopsis: Our community will consider how to fund quality of life services in an effective and efficient manner.

Policy 7.5.A: Funding for Quality of Life Services

Synopsis: Continue to identify and provide funding for services and amenities that contribute to quality of life and economic vitality of the community, including parks and recreation, cultural and library facilities, and other services.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-602 (a): The governing body shall specify how regulations, restrictions and the district boundaries are to be determined, established, enforced, amended, supplemented or otherwise changed.

Assessment: State statute states that the governing body shall specify how regulations regarding zoning are established and enforced. The Governing Body possesses the authority to amend regulations and therefore can amend the UDC to reflect this text amendment.

WYO 15-1-601 (a): The governing body of any city or town, by ordinance, may:
 (i) Regulate and restrict the:
 (D) Density of the population
 (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

Assessment: This amendment proposes modifying the UDC for the purposes of updating development fees associated with development applications regarding the location of buildings and density of the population; thus, fulfilling the requirements of this statute.

WYO 15-1-601(d): All regulations shall be made:
 (ii) With reasonable consideration, among other things, of the character of the district and its peculiar suitability for particular uses;
 (iii) With a view to conserving the value of buildings and encouraging the most appropriate use of land throughout the city or town.

Assessment: This amendment proposes modifying the UDC for the purposes of encouraging simple public processes to establish and modify fees related to development applications. Regulations of this nature are allowable under state statute and may be modified by the Governing Body.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment will not adversely impact the general health, safety and public welfare of Cheyenne.

CONCLUSION:

Staff concludes that this text amendment meets the review criteria of UDC 2.4.1.d. Allowing modification of the fee schedule by resolution allows for a timely process open to the public and is consistent with past practices. The amendments accomplish several policies within PlanCheyenne and are enabled by Wyoming State Zoning statutes. Lastly, updating the process for establishment of fees will not jeopardize the overall health, safety, and welfare of the community.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to Unified Development Code Section 1.3.7 to align the UDC fee schedule with the fee adoption practices of the City as outlined in this staff report, noting the request meets the review criteria of UDC 2.4.1.d.